

ORIGINAL

FEDERAL MARITIME COMMISSION

**PETITION OF BAX GLOBAL, INC.
FOR RULEMAKING**

Petition No. P8-03

Served: October 9, 2003

**ORDER DENYING BAX GLOBAL, INC.'S REQUEST
TO FILE A REPLY TO COMMENTS**

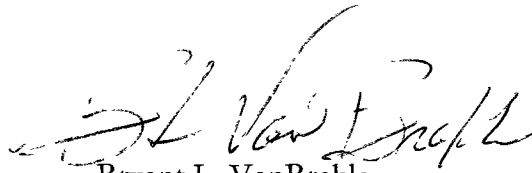
On September 11, 2003, BAX Global, Inc. submitted a petition requesting that the Commission initiate a rulemaking to permit BAX Global, a non-vessel-operating common carrier, and other similarly situated entities to enter confidential service contracts as "ocean common carriers" with their shipper-clients for the ocean transportation of cargo. BAX Global also requests that it be allowed to reply to any comments filed in response to its petition in a subsequent submission, which is the issue addressed here.

Rule 69 of the Commission's Rules of Practice and Procedure, 46 C.F.R. §502.69, governs the procedure for the filing of petitions and provides that replies to petitions filed with the Commission shall conform to the requirements of Rule 74, 46 C.F.R. §502.74. Rule 74 governs the procedures for the filing of replies to pleadings, motions, applications, etc. and provides that replies to replies are not permitted. 46 C.F.R. § 502.74(a)(1). BAX Global presents no justification for requesting this deviation from Commission rules. As the Commission's rule prohibiting a reply to a reply is clear and BAX Global fails to address the rule, its request is denied.

CONCLUSION .

THEREFORE, IT IS ORDERED That BAX Global, Inc.'s request to submit a reply to the comments filed in response to its Petition for Rulemaking is denied.

By the Commission.



Bryant L. VanBrakle
Secretary